

FEDERAL MARITIME COMMISSION

DOCKET NO. 18-02

TARIK AFIF CHAOUCH

v.

**DEMETRIOS AIR FREIGHT CO., DEMETRIOS INTERNATIONAL SHIPPING CO.,
INC., AND TROY CONTAINER LINE LTD**

**COMPLAINANT'S CONSENT MOTION FOR EXTENSION OF TIME TO FILE
RESPONSIVE PLEADINGS**

Pursuant to the provisions of 46 CFR §§ 502.69 and 502.102, Complainant, Tarik Afif Chaouch, ("Complainant") by and through counsel, files this Consent Motion for an Extension of Time to extend to March 5, 2018, the time within which Respondents, Demetrios Air Freight Co., Demetrios International Shipping Co., Inc., and Troy Container Line LTD ("Respondents") must file their responsive pleadings (pursuant to 46 C.F.R. §§ 502.62(b), 502.36-70) to the Complaint filed by Complainant, Tarik Afif Chaouch, and in support states as follows:

1. This Consent Motion is timely filed. Respondents' response to Complainant's Complaint is due February 12, 2018.

2. Complainant's office staff has just returned back to work after being out with the flu, and counsel for Complainant currently is out of the office with the flu. Complainant cites as good cause and reasonable grounds the flu illnesses that has affected Complainant's counsel's office. Complainant respectfully submits that the impact of the flu season on its office operations may be considered as reasonable grounds to support the filing of this Motion less than seven (7) days before the scheduled filing date.

3. The parties have commenced settlement discussions and will continue to do so once Complainant's counsel returns to the office. Both parties are endeavoring to work cooperatively towards resolution of some or all of the matters that are the subject of this action.

4. Counsel for the Complainant has communicated with counsel for the Respondents who have agreed to the requested extension.

Accordingly, good cause exists for the requested extension. The grant of such extension is consistent with Commission precedent and will promote the efficient disposition of this case. *See Great White Fleet, Ltd. v. Southeastern Paper Prods. Expert, Inc.*, 26 SRR 1374 (ALJ, 1994); *Puerto Rico Freight Sys., Inc. v. R & S Trading and J.C. Trading*, 27 SRR 141 (ALJ, 1995).

WHEREFORE, Complainant, by counsel hereby respectfully request that the presiding Administrative Law Judge grant Complainant's Consent Motion for an Extension of Time and allow all Respondents an extension of time to file responsive pleadings to the Complaint until March 5, 2018.

Respectfully submitted,



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Dated: February 9, 2018

CERTIFICATE OF SERVICE

I do hereby certify that I have delivered a true and correct copy of the foregoing document to the following addresses at the addresses stated by email and first-class mail on February 9, 2018.

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